



DECISION

Complaint No. : POS/428/KE-24

Name and Address of the Complainant : Mr. Muhammad Faisal and others, R/o. House No. F-63, Jahangir East, Near Jamshed Road No. 02, Karachi.

Name of the Agency Complained against : Accountant General Sindh

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED DISCRIMINATION IN ALLOWING ANNUAL INCREMENTS TO THE COMPLAINANTS WHO WERE APPOINTED AS JEST (BPS-14) AND ECT (BPS-15) IN 2020 AND POSTED AT KARACHI, ALTHOUGH SIMILAR BENEFIT HAS ALREADY BEEN ALLOWED TO OTHER TEACHERS OF SAME CATEGORIES POSTED IN OTHER DISTRICTS OF SINDH.**

THE COMPLAINT

Mr. Muhammad Faisal and others in their complaint dated 20.09.2024 stated that they were appointed as Junior Elementary School Teacher (JEST) in School Education and Literacy Department in 2020. The complainants stated that it has come to their notice that while annual increments and arrears for the years 2020 and 2021 have already been processed and paid to teachers posted in other districts of Sindh, around 300 teachers based/posted in Karachi have been denied such increments. This discrepancy, they stated, has caused them significant financial strain and dissatisfaction among the affected teachers, as their rightful increments and arrears have been delayed for an unreasonably long period. They further stated/claimed that the School Education & Literacy Department (SELD) and the Finance Department have already allowed protection of annual increments and teaching allowances during the contract period for all teachers who have passed test conducted by IBA, Sukkur. In view of the above, they had requested to take immediate steps to resolve this issue by ensuring the disbursement of pending annual increments and arrears to the Karachi-based teachers. The complainant therefore, solicited intervention of this office in the matter.

PROCEEDINGS

2. After admission of complaint under Section 10 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response the Accounts Officer, Office of the Accountant General Sindh, Karachi vide letter dated 24.01.2025 stated that Finance Department, Government of Sindh has issued letter No. FD(SO(SR-III)3(2599)/2024, dated:16.01.2025 wherein Administrative Department have been advised to re-fix their pay and make necessary recoveries of the excess pay drawn.

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3. The Deputy Accountant General (Education), Office of the A.G. Sindh, vide letter dated 13.05.2025, stated that his office has already issued letters to the Accounts Officer (Education) and District Accounts Officer (all in Sindh) for necessary compliance of the office of AG Sindh this regard.

4. The District Accounts Officer, Shikarpur, vide letter dated 13.05.2025, stated that as per instructions received from the Accountant General Sindh, Karachi, vide letter No. AGSINDH/EDU-1/2024-25/1220 dated 13.03.2025, no annual increment for the contractual period shall be paid to teachers appointed as JEST and ECT in the year 2020. In light of the above directive, a list of 125 such employees has been prepared, who have received annual increments during the contractual period and are liable for recovery. The letter informed that the office of AG Sindh has advised all the concerned DDOs to re-fix their pay and initiate recovery of the excess amount drawn. The DAO Shikarpur further informed that FO2 forms of all such employees, duly filled, have been collected to process the recoveries in accordance with the directives of the Accountant General Sindh, Karachi.

5. The Section Officer (SR-I), Finance Department, vide letter dated 21.07.2025, informed that the Finance Department had already issued a letter dated 27.06.2025 to the Deputy Accountant General (Education), Office of the A.G. Sindh, wherein it was advised that employees appointed on a contract basis, i.e. Junior Elementary School Teachers (JESTs, BPS-14) and Early Childhood Teachers (ECTs, BPS-15), are not entitled to annual increments for the contractual period, as such increments are admissible only to regular civil servants.

FINDING

6. I have examined the case record and observed that the complainants, appointed as JESTs and ECTs through the IBA Sukkur test, have alleged non-payment of annual increments and arrears for 2020–2021. However, reports received from the Accounts Officer, A.G. Sindh, Deputy Accountant General (Education), and Finance Department have confirmed that such annual increments are admissible only to regular civil servants and not to those appointed on contract basis. Hence, the non-payment of increments to the complainants is in accordance with the Finance Department's policy, and no element of maladministration is established.

CONCLUSION

7. In view of the above, the complaint is hereby disposed of as rejected.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi, dated 30-10-2025